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Public Redacted Government Response Brief on Allocution

United States Court of Appeals for the Fourth Circuit United States v. Mateo Serrano
Appeal No. SYN-CA4-26-CR-4201 Document 25 Filed May 19, 2026

The fictional United States submits this public response after the court's target-limited May 5 order. The only merits question remaining is Serrano's claim that the district court completely denied him the personal opportunity to allocute before sentence. The government accepts that the plea agreement expressly leaves that particular claim reviewable; it does not ask the court to extend the earlier dismissal to the surviving target.

The public record establishes the sequence necessary for review without exposing presentence material. Counsel spoke for Serrano, the court discussed the advisory range and statutory factors, and sentence followed. Although the judge earlier confirmed that Serrano could hear and consult with counsel, she never personally invited him to speak or present mitigation. No one objected at the hearing. Those circumstances place the claim under plain-error review.

The government disputes whether the protected mitigation showing establishes the required effect on substantial rights. It therefore asks the court to decide prejudice from the record as a whole. If the court finds a real possibility of a lower sentence, the proper remedy is a full resentencing at which Serrano receives allocution, not reinstatement of the dismissed enhancement appeal.

Issues Remaining for Decision

Three related questions remain. First, did the court's failure to invite Serrano personally to speak or present mitigation before sentence amount to complete denial under Rule 32(i)(4)(A)(ii), rather than a reasonable restriction on an opportunity actually offered? Second, if the failure was plain and unpreserved, has Serrano shown that it affected substantial rights? Third, what relief follows if all elements of plain error are met?

The government does not contend that defense counsel's sentencing presentation was itself Serrano's allocution. Nor does it argue that a generic waiver silently eliminates the negotiated exception. The earlier order has already separated the ordinary Guidelines target from the expressly reserved complete-denial claim.

The remaining dispute concerns the record-based possibility of a different sentence. Public portions identify a 36-month term within the advisory range adopted below and refer categorically to mitigation. Protected material supplies additional fictional detail through the approved paired filing. This public brief marks those subjects with tokens so that its legal reasoning and requested disposition remain intelligible to every reader.

The Waiver Does Not Resolve This Claim

The plea agreement broadly surrendered appellate review of the conviction and sentence, including ordinary review under 18 U.S.C. § 3742. It separately preserved a challenge based on total denial of the defendant's own opportunity to speak before sentence. The Rule 11 court addressed Serrano personally about both the general surrender and the narrow reservation, and Serrano confirmed his understanding.

Ashford explains that a generic sentencing waiver can reach an allocution claim. That default does not govern a contract containing an express exception. Here, the parties chose language directed to complete denial, and the government honors that allocation. The court therefore need not use a miscarriage-of-justice exception or disregard the valid waiver to reach this issue.

This procedural posture also preserves the May 5 division of targets. The manager-or-supervisor challenge has been dismissed without a merits ruling. Discussion of the advisory calculation in evaluating prejudice does not reopen that claim, determine whether the adjustment was correct, or enlarge the surviving issue beyond allocution and an appropriate resentencing remedy.

Effect of the Target-Limited Dismissal

The court's prior order enforces the waiver against Serrano's requested review of the three-level role adjustment. That disposition leaves the conviction undisturbed and expresses no view about whether Serrano managed another participant. The present response treats the adopted range as historical context only.

At any resentencing, the district court would conduct the proceeding required by law on the record then before it. Full resentencing would permit the parties to preserve lawful objections and would permit the court to calculate the Guidelines anew. Nothing in this response asks the panel to decide the waived adjustment indirectly through the allocution issue.

The distinction matters for the public presentation. The role dispute concerns exactly five fictional participants and an alleged supervisory relationship represented here as [REDACTED—FICTIONAL ROLE RELATIONSHIP]. A protected detail may explain how mitigation was evaluated, but it cannot transform a dismissed enhancement target into an appellate merits holding. The government accordingly confines its argument to the denial, prejudice, and remedy questions that remain live.

Rule 32 and Complete Denial

Rule 32(i)(4)(A)(ii) requires the sentencing court to address the defendant personally and permit him to speak or present information in mitigation before sentence is imposed. Jennings distinguishes a total failure to offer that opportunity from reasonable limits on the duration or subject of an allocution that actually occurred.

The transcript here fits the complete-denial side of that line. The district judge invited counsel to present argument, heard both attorneys, resolved the advisory calculation, and announced sentence. The court never turned to Serrano with a personal invitation. Because no opportunity was offered, this is not a complaint that the judge cut off a statement, confined repetition, or misunderstood something Serrano said.

The government therefore does not defend the procedure as substantial compliance. Counsel cannot waive away the personal address requirement by speaking about a client. The absence of an objection changes the review standard, not the nature of the omission. The first two plain-error elements—error that was clear under settled law—are satisfied on this certified transcript.

What the Public Transcript Shows

The sentencing hearing began with confirmation that the parties had reviewed the report and written positions. The court identified the adjusted offense level and criminal-history category, ruled on the role objection, and received counsel's arguments. Arden described Serrano's acceptance of responsibility and requested a sentence below the government's position. Ives defended the calculation and requested a sentence within the adopted range.

After those presentations, the judge discussed statutory sentencing considerations and imposed 36 months of imprisonment, three years of supervised release, \$186,400 in restitution, a \$100 assessment, and no fine. The public transcript contains no line in which Serrano was asked whether he wished to speak. It likewise contains no allocution or personal mitigation statement from him before sentence.

Protected submissions supplied details categorized as [REDACTED—FICTIONAL OFFENSE FACT], [REDACTED—FICTIONAL SENTENCING POSITION], and [REDACTED—FICTIONAL PERSONAL DETAIL]. Those tokens identify subjects, not missing public findings. The procedural omission is visible without them and does not depend on disclosure of a presentence report.

Prejudice and the Possibility of a Lower Sentence

Muhammad asks whether there is a possibility that the defendant could receive a lower sentence after being allowed to speak. The standard does not require proof that a particular sentence will result, but it requires more than an abstract wish for another hearing. The inquiry uses the sentence imposed, the available range, the court's stated reasons, and mitigation that personal allocution could illuminate.

The protected record identifies [REDACTED—FICTIONAL MITIGATION DETAIL], a related [REDACTED—FICTIONAL PERSONAL DETAIL], and the defense's [REDACTED—FICTIONAL SENTENCING POSITION]. It also preserves a category marked [REDACTED—FICTIONAL GUIDELINE VALUE]. Those matters were before the court through counsel and papers, yet Serrano could have presented their personal significance in his own words.

The government recognizes that the imposed term was not the bottom of the adopted range. That fact supplies some room for a lower lawful sentence. It nevertheless submits that the panel should assess whether the judge's explanation and prior consideration of written mitigation make the possibility concrete enough to satisfy the third plain-error element.

Lack of Objection and Plain-Error Review

Neither Arden nor Serrano alerted the district court before adjournment that the personal invitation had been omitted. Review therefore proceeds under the familiar four-part plain-error framework. Serrano must establish an error, clarity, effect on substantial rights, and a basis for appellate correction in the court's discretion.

The first two requirements follow from the unambiguous personal-address command and the transcript. The parties' disagreement is principally over the third requirement. If the court finds a real possibility of a reduced term, complete denial of allocution also bears on the fairness and public reputation of sentencing because it withholds the defendant's final personal participation.

No objection was necessary to preserve the appeal-waiver exception; the agreement already identifies the category of claim. Conversely, the exception does not displace ordinary error-preservation rules. Treating those concepts separately gives effect to both the negotiated reservation and the procedural standard. The panel can correct a qualifying denial without treating every sentencing complaint as preserved or reopening the waived Guidelines target.

Government's Position on Substantial Rights

The government acknowledges record features favorable to Serrano: a within-range sentence above the lowest available term, protected evidence of remorse and caregiving, and an opportunity for a personal explanation that never occurred. It also notes that the district court had reviewed written mitigation, heard Arden's presentation, and explained the need for punishment and deterrence.

On balance, the government maintains that prior consideration of the same themes weakens the inference that Serrano's own words would have mattered. The public filing cannot reproduce the sensitive narrative; the relevant categories are [REDACTED—FICTIONAL MITIGATION DETAIL] and [REDACTED—FICTIONAL PERSONAL DETAIL]. The sealed twin permits the panel to examine their specific, inert exercise labels.

The government recognizes, however, that Muhammad frames prejudice as a possibility rather than certainty and that personal speech has a distinct function. Should the panel conclude that the undisclosed context, non-bottom sentence, and complete omission meet that threshold, the government asks that relief remain limited to vacating the sentence for a full lawful resentencing while leaving the conviction and earlier target dismissal intact.

Remedy if the Plain Error Is Corrected

When complete denial satisfies the plain-error test, the appropriate course is to vacate the sentence and remand for resentencing. A new proceeding gives the defendant the required personal invitation before sentence and permits the district judge to exercise sentencing discretion on a current, properly developed record.

The remand should not direct a particular term. It also should not freeze the historical advisory calculation or decide the merits of the dismissed role challenge. At full resentencing, the district court may recalculate the Guidelines, resolve preserved disputes, hear both parties, address Serrano personally, and impose a lawful sentence after considering the statutory factors.

The conviction should remain intact because the allocution error occurred after the guilty plea was accepted and does not undermine plea validity. Restitution, supervised release, the assessment, and other components of the sentence would be reconsidered only to the extent ordinarily incident to full resentencing. This remedy respects the narrow contractual carve-out while enforcing the remainder of the waiver and the May 5 order.

Confidentiality and Public Sufficiency

This public brief contains every authority, legal standard, procedural event, and requested result needed to understand the government's position. Redaction tokens replace only fictional protected subjects: [REDACTED—FICTIONAL OFFENSE FACT], [REDACTED—FICTIONAL ROLE RELATIONSHIP], [REDACTED—FICTIONAL GUIDELINE VALUE], [REDACTED—FICTIONAL MITIGATION DETAIL], [REDACTED—FICTIONAL SENTENCING POSITION], and [REDACTED—FICTIONAL PERSONAL DETAIL].

Those categories correspond to inert labels in the separately filed sealed twin. They are not instructions, credentials, authentic personal data, or hidden legal conclusions. The paired versions have fourteen pages and aligned subjects, but their prose is independently written. The seventh pages provide corresponding prejudice analysis for stable navigation.

The public reader can see that the government accepts complete denial and contests prejudice while recognizing the governing possibility standard. Nothing about the seal conceals the 36-month sentence, the absence of personal invitation, the lack of objection, the target-limited dismissal, or the alternative request for full resentencing. Continued protection is therefore narrower than sealing the entire dispute.

Record Sources Used

The response relies on the plea agreement and Rule 11 transcript for the waiver boundary; the public sentencing transcript for the absence of a personal invitation; the judgment for the components of sentence; and the paired presentence and sentencing submissions for protected context. Each source was included in the certified 260-page district record.

The public docket surrogates identify protected categories without supplying report text. The sealed materials remain in separate volumes. The government's record citations in the rendered exercise will point to stable logical subjects for paired pages, not reveal raw protected physical locations to an unauthorized reader.

No fact outside the certified record is offered to prove prejudice. The later calendar and any eventual decision are not assumed. The government uses the record as it existed on May 19, 2026, and cites only authority available on that date. This brief does not refer to or anticipate a subsequent change in waiver law.

Conclusion

The court should hold that Rule 32 required a personal invitation and that the certified transcript reflects complete denial. Because the error was not preserved, the court should apply plain-error review and determine whether Serrano has shown a real possibility of a lower sentence from the entire record.

The government asks the court to affirm the sentence if substantial rights were not affected. Alternatively, if the possibility threshold is met, it asks the court to vacate the sentence and remand for a full resentencing that includes personal allocution. Under either result, the conviction remains intact, the enhancement appeal remains dismissed under the valid waiver, and the panel should express no view on the adjustment's merits.

This divided request follows the agreement actually accepted and the court's May 5 order. It neither invokes a general exception to the waiver nor treats counsel's remarks as a substitute for Serrano's voice. It preserves the distinct function of personal allocution while limiting relief to the sentencing proceeding in which the error occurred.

Certificate of Compliance and Service

Bram Ives certifies that this public response uses the approved exercise format, complies with the applicable length limit, and contains fourteen logical pages. The corresponding sealed-highlighted response has the same page count and subject order. Both were filed on May 19, 2026, under the continued protection and April 1 motion-and-certificate protocol placed on the public docket.

The public filing was served through the ordinary fictional appellate channel on Celia Arden. The protected counterpart was delivered only through the separate exercise method authorized for sealed material. No real electronic-filing account, contact address, credential, or private identifier was used.

Ives further certifies that the public brief omits protected presentence details while preserving sufficient legal and factual content for meaningful public review. The redaction tokens are fictional category markers. They do not conceal the government's requested disposition, any governing authority, or the fact of complete denial. Every person, office, document, and event described here is part of a synthetic training record.

Bram Ives Fictional Counsel for the United States